

CONTRACT

1.1 (Milestone-Based IT Services Contract)

This Agreement is made on 2/26/2026

1.2 1. PARTIES

Service Provider:

TDARCS Pvt. Ltd.

An IT Company Registered in Nepal

Address: Biratnagar-11, Alka Marg, Morang, Nepal

Email: tdarcs12@gmail.com

Client:

Mr. Lakshya Kapair

Address: New Zealand

Email: lakshyakapair@gmail.com

TDARCS and the Client are collectively referred to as the “**Parties.**”

1.3 2. DEFINITIONS

- “**Agreement**” means this contract including all schedules and annexes.
- “**Deliverables**” means the modules, systems, documentation, and materials agreed under this Agreement.
- “**Milestone**” means a defined phase of work with corresponding payment.
- “**Completion**” means delivery of a module that meets the acceptance criteria.
- “**Source Code**” means human-readable program code excluding third-party libraries.
- “**Third-Party Services**” means external tools, APIs, hosting, or services not owned by TDARCS.

1.4 3. VISION (Informative)

TDARCS aims to deliver innovative, secure, and scalable digital solutions that create long-term value for clients while contributing to digital transformation within Nepal.

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1.5 4. SCOPE OF SERVICES

TDARCS shall provide the following services:

- Website
- Online booking and inquiry system with real-time data.
- UI/UX Design
- SEO & Digital Services (if separately agreed)
- Maintenance & Technical Support (as per Section 11)

1.6 5. PROJECT DESCRIPTION

This Agreement covers the design and development of a **Nutritionist Personal website for Lakshya Kapair**, basis on sharing diet, wellness, and nutrition related contract. The website will deliver comprehensive professional information and well-researched educational articles for visitors, developed and structured in accordance with the specifications outlined in this agreement.

1.7 6. TECHNOLOGY STACK

- Backend Framework: Laravel (PHP)
- Database: MySQL
- Frontend: Blade Templates, HTML, CSS, JavaScript and optional frontend libraries as required

1.8 7. HOSTING & DOMAIN

- Hosting and domain registration shall be provided and managed by the Client.
- TDARCS shall not be responsible for downtime, security breaches, or data loss arising from hosting or domain services.

1.9 8. MILESTONES & PAYMENT STRUCTURE

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1.10 Payment Breakdown:

Week 1 (Initiation cost): NPR,10,000

Week 3: NPR, 30,000

Week 5 (After completion of Project): NPR, 20,000

Total Payable Amount: NPR 60,000

1.11 9. ACCEPTANCE CRITERIA

- The Client shall review each Deliverable within **5 working days**.
- Written acceptance or change requests must be provided within this period.
- Failure to respond shall constitute deemed acceptance.

1.12 10. CHANGE REQUESTS & SCOPE CONTROL

- Up to three (3) minor changes are included if within scope.
- Any additional changes require written approval with revised cost and timeline.
- Out-of-scope items include data entry, content writing, legal compliance, SEO ranking guarantees, and additional training.

1.13 11. MAINTENANCE & SUPPORT

- One (1) year of free software maintenance after project completion.
- Bug fixes within 60 days are free (excluding third-party or client-side changes).
- Annual maintenance after first year: NPR 10,000.
- Reactivation fee after service gap: NPR 5,000.
- Updates that significantly change functionality, theme, or structure are billed separately.

1.14 12. SOURCE CODE & INTELLECTUAL PROPERTY

- TDARCS retains ownership of reusable frameworks and libraries.
- Client receives usage rights upon full payment.
- Full source code ownership requires payment of **150% of total project cost**.
- Third-party licenses are governed by their respective providers.

1.15 13. CONFIDENTIALITY & DATA SECURITY

- Both Parties shall maintain confidentiality of shared information.
- TDARCS shall implement reasonable security practices.
- TDARCS is not liable for breaches caused by weak credentials or third-party hosting.
- Client data and content remain the sole responsibility of the Client regarding legality and copyright.

1.16 14. PAYMENT DEFAULT & WORK SUSPENSION

- In the event of delayed or non-payment of any milestone amount, TDARCS reserves the right to **immediately suspend or stop all ongoing work and services** until the outstanding payment is fully settled.
- Project timelines shall be automatically extended for the duration of the payment delay.
- TDARCS shall not be responsible for any loss, delay, or impact arising from suspension due to payment default.
- No refunds shall be applicable for milestones that have already been completed and delivered.

1.17 15. TERMINATION

- Either Party may terminate this Agreement by providing **written notice of not less than seven (7) working days** to the other Party.
- Upon termination by the Client for any reason, **all work completed, milestones achieved, and expenses incurred up to the effective termination date shall be immediately billed and become fully payable.**
- TDARCS reserves the right to suspend or terminate the Agreement immediately in the event of payment default, material breach, or misuse of the system by the Client.
- Any amounts already paid, including the **initiation fee**, shall be **strictly non-refundable under all circumstances.**
- Termination shall not affect the rights and obligations of the Parties accrued prior to termination, including payment obligations, intellectual property rights, and confidentiality clauses.

1.18 16. LIMITATION OF LIABILITY

TDARCS's total liability shall not exceed the total amount paid under this Agreement. TDARCS shall not be liable for indirect, incidental, or consequential damages including loss of profit or data.

1.19 17. FORCE MAJEURE

Neither Party shall be liable for delays due to events beyond reasonable control, including natural disasters, strikes, or internet outages.

1.20 18. DISPUTE RESOLUTION & CONSEQUENCES OF UNRESOLVED DISPUTES

1. **Good-Faith Negotiation:** In the event of any dispute, controversy, or claim arising out of or in connection with this Agreement, the Parties shall first attempt to resolve the matter through good-faith negotiations within **fifteen (15) working days** from the date one Party notifies the other in writing of the dispute.
2. **Mediation:** If the dispute is not resolved through negotiation within the specified period, the Parties agree to refer the dispute to **mediation conducted in Nepal** by a mutually agreed mediator. Mediation costs shall be shared equally unless otherwise agreed.
3. **Suspension of Work During Dispute:** During the dispute resolution process, TDARCS reserves the right to **suspend ongoing work, access, or services**, especially where the dispute involves payment default, scope disagreement, or misuse of deliverables. Such suspension shall not be considered a breach of contract.
4. **Termination Due to Unresolved Dispute:** If the dispute remains unresolved for a period exceeding **thirty (30) days** from the date of formal dispute notice, TDARCS shall have the right, at its sole discretion, to **terminate this Agreement with immediate effect**. In such case, all completed work and accrued charges up to the termination date shall become immediately due and payable.
5. **Jurisdiction & Legal Proceedings:** If mediation fails or is waived, the dispute shall be finally settled by the **courts of Nepal**, which shall have exclusive jurisdiction.
6. **Governing Law:** This Agreement shall be governed by and construed in accordance with the **laws of Nepal**, without regard to conflict-of-law principles.

1.21 19. GENERAL CLAUSES

- **Non-Assignment:** Neither Party may transfer or assign its rights or obligations under this Agreement without prior written consent of the other Party.
- **Non-Solicitation (Employee Protection):** The Client agrees that it shall not directly or indirectly hire, attempt to hire, solicit for employment, or engage (as an employee, consultant, freelancer, or contractor) any employee or contractor of TDARCS who was involved in the project **during the term of this Agreement and for a period of twelve (12) months after the completion or termination of this Agreement**. This clause does **not** restrict the Client from engaging TDARCS Pvt. Ltd. itself for additional or future projects.
- **Severability:** If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be severed and the remaining provisions shall continue in full force and effect.
- **Entire Agreement:** This Agreement represents the complete and exclusive understanding between the Parties **only for the specific project described herein**. Any additional work, enhancements, or future projects shall be subject to a **separate written agreement, proposal, or mutually agreed addendum**, and nothing in this clause shall restrict the Client from engaging TDARCS for future projects.
- **Client Responsibilities:** The Client shall provide all necessary data, content, access credentials, and approvals in a timely manner. Delays caused by the Client may extend project timelines and TDARCS shall not be held liable for such delays.
- **Training Scope:** TDARCS shall provide basic system training to the Client for system usage and administration at the time of project handover, either remotely or onsite as mutually agreed. Training shall be limited to the features delivered. Any additional or extended training requested beyond the initial handover shall be subject to additional charges.

- **Warranty Disclaimer:** TDARCS provides the software “as is” upon acceptance. TDARCS does not guarantee business results, sales, SEO ranking, or other performance metrics beyond functional deliverables.

1.22 20. ACCEPTANCE & SIGNATURES

This Agreement shall become legally binding upon execution by both Parties. By signing below, the Parties confirm that they have read, understood, and agreed to all the terms and conditions of this Agreement.

Lakshya Kapair

TDARCPvt.Ltd.